

Cause No. _____
(1)

In the Matter of

§ In the

§ _____
(2)

Maria-Alejandra O'Shaughnessy-Whitfield
(3)

§ _____ County, Texas
(4)

Petition for Order of Nondisclosure **Under Section 411.073**

Maria-Alejandra O'Shaughnessy-Whitfield (5) ("Petitioner") respectfully petitions the court for an order of nondisclosure under Government Code Section 411.073 for the offense described below.

1. The Underlying Order and Completion of Community Supervision

Petitioner was convicted of the misdemeanor offense of _____ (6) in Criminal Cause No. _____ (7) in this court on _____. (8)

Following the conviction, Petitioner was placed on community supervision on _____. (9) Petitioner completed community supervision, including any term of confinement imposed and payment of all fines, costs, and restitution, if any, on _____. (10)

A copy of the document or order showing that Petitioner was placed on community supervision _____ (11) attached, and the order or document showing that Petitioner completed community supervision, including any term of confinement imposed and payment of all fines, costs, and restitution, if any, _____ (12) attached.

2. Petitioner Satisfies the Requirements of Government Code Section 411.073

Petitioner satisfies the requirements of Section 411.073, Gov't Code, in that:

- Petitioner's offense is a misdemeanor but not a misdemeanor under:
 - Alcoholic Beverage Code Section 106.041, (Driving/Operating Watercraft Under the Influence of Alcohol By Minor),
 - Penal Code Section 49.04, (Driving While Intoxicated),
 - Penal Code Section 49.05, (Flying While Intoxicated),
 - Penal Code Section 49.06 (Boating While Intoxicated),
 - Penal Code Section 49.065 (Assembling or Operating an Amusement Ride While Intoxicated), or
 - Penal Code Chapter 71 (Organized Crime);
- Following conviction for the offense, Petitioner was placed on community supervision under a provision of Chapter 42A (formerly Article 42.12), Code of Criminal Procedure, other than Subchapter C (formerly Section 5 of Article 42.12) of that chapter;
- Petitioner completed the period of community supervision, including any term of confinement imposed and payment of all fines, costs, and restitution, if any, and was not revoked;
- Petitioner has never been previously convicted of or placed on deferred adjudication community supervision for another offense other than a traffic offense punishable by fine only;
- Petitioner has waited the requisite time, as indicated below, before filing this petition. ⁽¹³⁾

- ☐ On or after the second anniversary of the date that Petitioner completed community supervision, if Petitioner's offense was a misdemeanor under Penal Code Chapter 20, 21, 22, 25, 42, 43, or 46; and
- ☐ On or after the date that Petitioner completed community supervision, if Petitioner's offense was **not** a misdemeanor under Penal Code Chapter 20, 21, 22, 25, 42, 43, or 46; and
- Petitioner satisfies the requirements of Government Code Section 411.074.

3. Petitioner Satisfies the Requirements of Government Code Section 411.074

Petitioner satisfies the requirements of Section 411.074, Gov't Code, in that:

- During the period after the court placed Petitioner on community supervision, and during any applicable waiting period (as indicated in Section 2 above), Petitioner was not convicted of or placed on deferred adjudication community supervision for any offense, other than a traffic offense punishable by fine only;
- Petitioner was not and has not ever been previously convicted of or placed on deferred adjudication community supervision for any of the following:
 - (A) an offense requiring registration as a sex offender under Code of Criminal Procedure Chapter 62;
 - (B) an offense under Penal Code Section 20.04 (Aggravated Kidnapping);
 - (C) an offense under any of the following sections of the Penal Code:
 - 19.02 (Murder);
 - 19.03 (Capital Murder);
 - 20A.02 (Trafficking of Persons);
 - 20A.03 (Continuous Trafficking of Persons);

- 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual);
 - 22.041 (Abandoning or Endangering a Child);
 - 25.07 (Violation of Court Orders or Conditions of Bond in a family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case);
 - 25.072 (Repeated Violation of Certain Court Orders or Conditions of Bond in a family violence, child abuse or neglect, sexual assault or abuse, indecent assault, stalking, or trafficking case); or
 - 42.072 (Stalking); or
- (D) any other offense involving family violence, as defined by Family Code Section 71.004; and
- The court did not make an affirmative finding that the offense for which the order is requested involved family violence, as defined by Family Code Section 71.004.

4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.073 if the person satisfies the requirements of Sections 411.073 and 411.074 of the Code.

As indicated above, Petitioner satisfies the requirements of both sections.

5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice

Issuance of the order is in the best interest of justice.

6. The Fee to File the Petition Has Been Paid or Otherwise Satisfied

Filing fees and court costs are required upon filing this petition. Alternatively, a petitioner may submit a *Statement of Inability to Afford Payment of Court Costs* if the petitioner is unable to pay the required fees and costs. Petitioner has included ⁽¹⁴⁾

☐

the required filing fees and court costs.

☐

a Statement of Inability to Afford Payment of Court Costs.

7. Prayer for Relief

Petitioner asks the Court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.073.

Respectfully submitted,

Signature ⁽¹⁵⁾

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name ⁽¹⁶⁾

Address ⁽¹⁷⁾

City, State, Zip ⁽¹⁸⁾

(361) 555-0199 ext. 4417

Telephone Number ⁽¹⁹⁾

Cause No. _____

In the Matter of

§ In the

§ _____

Maria-Alejandra O'Shaughnessy-Whitfield

§ _____ County, Texas

ORDER OF NONDISCLOSURE

On _____, the Court considered Petitioner's petition for an order of nondisclosure.

The State was given notice of the petition and an opportunity to request a hearing.

The State

☐

requested a hearing.

☐

did not request a hearing.

The Court

☐

conducted a hearing on _____.

☐

did not conduct a hearing.

After consideration and a hearing, if a hearing was held, the Court **FINDS** that Petitioner is entitled to file a petition for an order of nondisclosure under the section of

the Government Code indicated below and issuance of an order of nondisclosure is in the best interest of justice.

- ☐ Texas Government Code Section 411.0725
- ☐ Texas Government Code Section 411.073
- ☐ Texas Government Code Section 411.0735

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information related to the offense(s) of _____ in Criminal Cause No. _____ in _____ County, Texas.

IT IS FURTHER ORDERED that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to individuals and agencies listed in Government Code Section 411.076(a).

IT IS FURTHER ORDERED that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter "DPS") by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15th business day after the order issues, in accordance with Government Code Section 411.075(a).

IT IS FURTHER ORDERED that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this

order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

IT IS FURTHER ORDERED that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

IT IS FURTHER ORDERED that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on _____.

Judge Presiding

Court/County

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY OF THE PETITION

READ THIS FIRST: YOU MAY NOT NEED THIS PAGE.

Government Code Sec. 411.0745(e) makes THE COURT responsible for giving the State notice of your petition and an opportunity to request a hearing, and the committed record states that you should not be charged for that notice. You are not the one who serves the State.

OCA instructions nonetheless direct a petitioner to show proof that the district attorney received a copy of the petition, and some counties expect it. ASK THE CLERK OF THE COURT YOU ARE FILING IN whether that county wants this. If it does not, leave this page out.

Cause No.:

Court and county:

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that a copy of my Petition for an Order of Nondisclosure under Government Code Sec. 411.073 was delivered to the district attorney as follows:

District attorney - name and office:

.....

Address:

.....

How it was delivered:

Date the district attorney received it:

.....

Maria-Alejandra O'Shaughnessy-Whitfield

Date:

(You sign and date this when the copy has actually been delivered. Nothing on this page is signed or dated for you, and no district attorney's name or address is printed here: the platform holds none for any Texas county and does not guess one.)

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / **Mi nombre legal completo es**
Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / **Mi fecha de nacimiento es**
12/31/1972

Month Day Year / Mes Día Año

- My address is / **Mi dirección es**

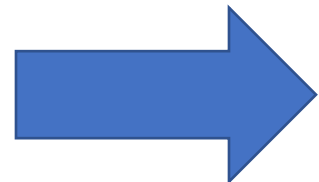
Home / **Domicilio** 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Mailing / **Dirección Postal**

- My phone number / **Mi número telefónico** (361) 555-0199 ext. 4417

- My email I check often / **Mi correo electrónico que reviso con frecuencia**
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Go to next page



Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para
_____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

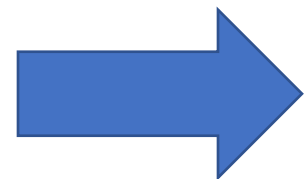
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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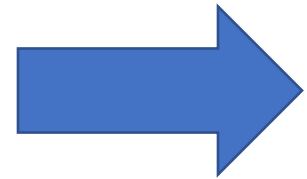
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10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

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Pase a la siguiente página

Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

Go to next page



Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

➤ Maria-Alejandra O'Shaughnessy-Whitfield

Your printed name

Su nombre en letra de molde

➤ _____
Your signature
Su firma

The notary fills out this section.

El Notario llena esta sección.

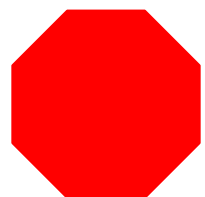
➤ _____

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



FILING INSTRUCTIONS, WHAT IT COSTS, AND WHAT THE ORDER DOES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHICH SECTION THIS IS. Government Code Sec. 411.073 is for a MISDEMEANOUR CONVICTION followed by straight-probation community supervision under Chapter 42A other than deferred adjudication, successfully completed and not revoked. If the record says deferred adjudication, straight time, or revoked supervision, this is the wrong section.

ONE ORDER FORM, THREE SECTIONS. The proposed order is the state's model for Secs. 411.0725, 411.073 and 411.0735. Yours is 411.073, but none of its three boxes is marked here: the sentence above them says the COURT FINDS which section applies, so marking one would assert a judicial finding.

WHERE THIS IS FILED. File the petition with the CLERK OF THE COURT THAT SENTENCED YOU. That clerk forwards it to the court. Under Government Code Sec. 411.0745(a) you may file it in person, electronically or by mail. OCA instructions say that in most courts a proposed order must be submitted with the petition, which is why the proposed order is in this packet.

ONE OFFENCE, ONE ORDER. An order of nondisclosure applies to a single offence. If you want more than one offence sealed, that takes more than one order.

WHAT IT COSTS - AND THE NUMBER YOU SHOULD IGNORE.

Government Code Sec. 411.0745(b) says the petition must be accompanied by payment of a fee THAT GENERALLY APPLIES TO THE FILING OF A CIVIL CASE. Read carefully, that subsection sets the TYPE of fee, not an amount: there is no flat statutory figure for a petition-based nondisclosure, and your county's civil filing fee schedule governs. OCA instructions describe the total as TYPICALLY ABOUT \$280, VARYING BY COUNTY, and tell you to call the clerk.

SO CALL THE CLERK OF THE COURT YOU ARE FILING IN and ask what the civil filing fee is there, before you go.

NOW THE NUMBER TO IGNORE: \$28. It belongs only to the no-petition route under Government Code Sec. 411.072(c), not this petition route under Sec. 411.073. Do not arrive at the clerk's window with \$28.

IF YOU CANNOT AFFORD IT. Paragraph 6 of the petition lets you choose between paying the fees and costs and filing a STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS under Texas Rule of Civil Procedure 145. That Statement is in this packet, on the statewide bilingual form approved by the Supreme Court of Texas in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK, so you are entitled to it whether or not you use the copy here.

The Statement is sworn under penalty of perjury. Fill it from your own records - pay statements, benefit letters, bills - and not from memory. Nothing on it is filled in for you except your own name, date of birth,

address, telephone number and email, because the platform holds no financial fact about anyone.

On page 2 of the Statement, your date of birth is printed month, day, year. Page 11 asks for it again in three boxes. Copy all three parts from page 2; the platform leaves that line blank because its month box shares a form field with the notary's month on page 12.

WHO GIVES NOTICE TO THE STATE - AND IT IS NOT YOU. Under Sec. 411.0745(e), on receipt of your petition THE COURT provides notice to the State and an opportunity for a hearing. The committed record states that you should not be charged for that notice. OCA instructions do direct a petitioner to show proof that the district attorney received a copy, and some counties expect it, which is why this packet includes a proof-of-delivery page marked **CONDITIONAL**. Ask the clerk whether that county wants it.

WILL THERE BE A HEARING? A hearing is required **UNLESS** the State does not request one before the 45th day after receiving notice **AND** the court finds that you are entitled to file the petition and that issuing the order is in the best interest of justice.

NOTARIZATION. Subchapter E-1 does not require the petition to be notarized. County practice may differ. Ask the clerk.

HOW LONG YOU WAIT. If the misdemeanour is under Penal Code Chapter 20, 21, 22, 25, 42, 43 or 46, wait until the second anniversary of completing community supervision. For another qualifying misdemeanour, you may file when community supervision is complete. Use the judgment's code chapter and the completion date; do not guess either.

YOU MUST HAVE SUCCESSFULLY COMPLETED STRAIGHT PROBATION. Completion includes any confinement and payment of all fines, costs and restitution. The supervision must not have been revoked, and deferred adjudication routes to a different section.

WHAT THE ORDER ACTUALLY DOES - AND WHAT IT DOES NOT. Nondisclosure is **SEALING**, not expunction. The order prohibits criminal justice agencies from disclosing the record to the public, and the information is still disclosed to the individuals and agencies listed in Government Code Sec. 411.076(a). The clerk sends the order to the DPS Crime Records Service by the 15th business day; DPS forwards it to the agencies in Sec. 411.075(b) within 10 business days; and any person, agency or entity holding the information seals it within 30 business days of receiving it. The record is not destroyed and you should never say it does not exist.

WHEN TO STOP AND GET HELP INSTEAD.

- The record shows deferred adjudication, no community supervision, or revoked supervision. This is the wrong section.
- Community supervision, confinement, fines, costs or restitution are not complete.
- You do not know the Penal Code chapter or completion date needed to choose the immediate or two-year waiting branch.
- You have any other conviction or deferred adjudication other than a fine-only traffic offence, or you are not sure.

- The prosecutor opposes the petition or requests a hearing.
- There is a family violence FINDING or a family violence ALLEGATION anywhere in your record - an allegation stops this route even where no court ever made a finding - or any offence on the Sec. 411.074 exclusion list is in your history.
- You are not a United States citizen.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63. It establishes the disposition and shows every other conviction and deferred adjudication.
- The judgment, and the discharge or dismissal order - the clerk of the court that sentenced you. It establishes which section applies, because Texas splits nearly every nondisclosure section on whether there was deferred adjudication, probation, or neither.